

STATE OF NEW YORK

2462--B

Cal. No. 338

2025-2026 Regular Sessions

IN SENATE

January 17, 2025

Introduced by Sens. GIANARIS, MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- again amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public authorities law and the energy law, in relation to the New York power authority's conferral process

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "public renewables transparency act".

3 § 2. Paragraph (e) of subdivision 27-a of section 1005 of the public
4 authorities law is amended by adding two new subparagraphs (xi) and
5 (xii) to read as follows:

6 (xi) During at least three board of trustees' meetings per year, there
7 shall be a public report delivered and published on the development and
8 implementation of the authority's renewable energy generation strategic
9 plan. A statement explaining that there is no update shall be accepta-
10 ble.

11 (xii) The authority shall maintain a public dashboard on their website
12 demonstrating their progress in implementing the authority's renewable
13 energy generation strategic plan.

14 § 3. Subparagraph (vii) of paragraph (e) of subdivision 27-a of
15 section 1005 of the public authorities law, as added by section 1 of
16 part QQ of chapter 56 of the laws of 2023, is amended to read as
17 follows:

18 (vii) The authority shall post a draft of the strategic plan on its
19 website for public comment for a period of at least sixty days, and
20 shall hold at least three public hearings on the draft strategic plan in
21 regionally diverse parts of the state. Consideration should be given to
22 the availability of public transit when selecting locations for in-per-
23 son hearings.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00523-09-5

§ 4. Section 6-102 of the energy law, as added by chapter 433 of the laws of 2009, subdivisions 1, 2 and 3 as amended by chapter 195 of the laws of 2011, is amended to read as follows:

§ 6-102. State energy planning board. 1. There shall be established a state energy planning board, hereinafter referred to as the "board", which shall consist of the chair of the public service commission, the commissioner of environmental conservation, the chief executive officer of the New York power authority, the commissioner of economic development, the commissioner of transportation, the commissioner of labor, the commissioner of the division of homeland security and emergency services, the commissioner of agriculture and markets, the commissioner of health, the secretary of state and the president of the New York state energy research and development authority. The governor, the speaker of the assembly and the temporary president of the senate shall each appoint one additional representative to serve on the board. The presiding officer of the federally designated electric bulk system operator (BSO) shall serve as a non-voting member of the board. Any decision or action by the board shall be by majority vote. The president of the New York state energy research and development authority shall serve as chair of the board. Members of the board may designate an executive staff representative to participate on the board on their behalf.

2. Regional planning councils shall be established. Two regions shall be established as follows:

(a) Downstate region - New York City and Dutchess, Nassau, Orange, Putnam, Rockland, Suffolk, Ulster and Westchester counties;

(b) Upstate region - Albany, Allegany, Broome, Cattaraugus, Cayuga, Chautauqua, Chemung, Chenango, Clinton, Columbia, Cortland, Delaware, Erie, Essex, Franklin, Fulton, Genesee, Greene, Hamilton, Herkimer, Jefferson, Lewis, Livingston, Madison, Monroe, Montgomery, Niagara, Oneida, Onondaga, Ontario, Orleans, Oswego, Otsego, Rensselaer, Saratoga, Schenectady, Schoharie, Schuyler, Seneca, St. Lawrence, Steuben, Sullivan, Tioga, Tompkins, Warren, Washington, Wayne, Wyoming and Yates counties.

The governor, temporary president of the senate and the speaker of the assembly shall each appoint three regional planning council members per region. Regional planning council members shall serve without compensation, and shall have their principal residence within the region for which they are appointed. Such regional council members may solicit input from stakeholder interests within their region, including but not limited to local governments, municipal utilities, rural electric cooperatives, utilities, labor unions, ratepayers, businesses, trade associations, generators, and community organizations. Each regional planning council shall transmit to the board a report containing any recommendations specific to its region on a schedule determined by the board to be appropriate for consideration of such report in the development of the draft energy plan.

3. Staff services shall be performed by personnel of the department of public service, the department of environmental conservation, the New York power authority, the department of transportation, the department of economic development, the division of homeland security and emergency services and the New York state energy research and development authority, as directed by the board. Assistance shall also be made available, as requested by the board, from other agencies, departments and public authorities of the state. The board may provide for its own representation in all actions or proceedings in which it is a party.

§ 5. This act shall take effect immediately.